ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address):
Hon. R. Padilla, Jr.
Judge - Family Law Division
Department 22

TELEPHONE NO.: 650-261-5122 FAX NO. (Optional):
E-MAIL ADDRESS (Optional): Dept22@sanmateocourt.org
ATTORNEY FOR (Name):

FOR COURT USE ONLY

FILED
SAN MATEO COUNTY
SEP 22 2025
Clerk of the Superior Court
By DEPUTY CLERK

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN MATEO
STREET ADDRESS: 400 County Center
MAILING ADDRESS: 7th Floor
CITY AND ZIP CODE: Redwood City, CA 94063
BRANCH NAME: Southern Hall of Justice

PETITIONER/PLAINTIFF: Laurie Gillespie (f/k/a Goldman)

RESPONDENT/DEFENDANT: Paul Andrew Goldman

OTHER PARTY:

FINDINGS AND ORDER AFTER HEARING

CASE NUMBER: 17FAM01131

1. This proceeding was heard
on (date): 9/10/2025 at (time): 11:00 AM in Dept.: 22 Room: 7C
by Judge (name): Hon. R. Padilla, Jr. ☐ Temporary Judge 5/23/25
On the order to show cause, notice of motion or request for order filed (date): 6/4/25 by (name): Petitioner/Respondent
a. ☒ Petitioner/plaintiff present ☒ Attorney present (name): Christine DeKlotz
b. ☒ Respondent/defendant present ☒ Attorney present (name): Steven Springer
c. ☐ Other party present ☐ Attorney present (name):

THE COURT ORDERS

2. Custody and visitation/parenting time: As attached ☐ on form FL-341 ☐ Other ☐ Not applicable
3. Child support: As attached ☐ on form FL-342 ☐ Other ☐ Not applicable
4. Spousal or family support: As attached ☐ on form FL-343 ☐ Other ☐ Not applicable
5. Property orders: As attached ☐ on form FL-344 ☒ Other ☐ Not applicable
6. Attorney's fees As attached ☐ on form FL-346 ☒ Other ☐ Not applicable
7. Other orders: ☒ As attached ☐ Not applicable
8. All other issues are reserved until further order of court.
9. ☐ This matter is continued for further hearing on (date): at (time): in Dept.:
on the following issues:

Date: SEP 22 2025

JUDICIAL OFFICER

Approved as conforming to court order.

SIGNATURE OF ATTORNEY FOR ☐ PETITIONER/PLAINTIFF ☐ RESPONDENT/DEFENDANT ☐ OTHER PARTY

Form Adopted for Mandatory Use
Judicial Council of California
FL-340 [Rev. January 1, 2012]

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SHORT TITLE: Gillespie (f/k/a Goldman) v. Goldman	CASE NUMBER: 17FAM01131

ATTACHMENT *(Number)*: 1

(This Attachment may be used with any Judicial Council form.)

The current matters before the Court are Petitioner's ex parte RFO filed May 23, 2025 (entered May 30, 2025) and Respondent's ex parte RFO filed June 4, 2025 (entered June 6, 2025). The Court notes that it set a briefing schedule as part of a stipulation and order for continuance entered June 23, 2025, with responses due on August 15, 2025, and replies due on August 29, 2025. Petitioner has since filed a timely response on August 15, 2025, and Respondent has filed an untimely response on August 26, 2025. Petitioner has further filed a timely reply on August 29, 2025, objecting to consideration of Respondent's untimely response, although she has since filed an untimely further reply declaration on September 2, 2025, which addresses the substance of Respondent's response. Respondent, in turn, has made a series of late reply filings on September 2, 2025, with his attorney alleging that the late filings were due to his own error. Upon review of these filings and the arguments made at during the hearing, the Court determines and orders as follows.

As a preliminary matter, the Court will consider the substance of Respondent's response filed August 26, 2025, as well as Petitioner's related late reply declaration filed September 2, 2025. In reviewing this issue, the Court has serious concerns with Respondent's attorney's excuse for failing to comply with the set schedule, as the Court dealt with a nearly identical set of issues at a recent hearing on November 20, 2024. Nonetheless, it credits that the issue was due to attorney error, and it credits that the error is not prejudicial to Petitioner in light of her filing of a late reply declaration that addresses the substance of these filings. That said, the Court will not otherwise consider Respondent's late reply filings on September 2, 2025, as it finds that Respondent's counsel should have been aware of any error as of at least August 15, 2025, based on the email that Petitioner's counsel attaches as Exhibit B of her reply brief. The Court notes that Respondent's filings concede that the Court has discretion to disregard these further reply filings.

Regarding parties' substantive disputes, the Court finds that it has the authority to order sale of the property pursuant to paragraph 3 of the stipulation and order entered June 21, 2024. Further, the Court credits Exhibit 4 of Ms. Wilbur's declaration filed August 15, 2025, as providing appropriate terms for a sale that is in the best interest of the community. Consistent with those recommendations, the Court authorizes Wilbur Properties to list the property for sale at $5,050,000. The Court, further, will dispense with the requirement for Respondent's consent to a sale at or above this price, pursuant to FC § 1101(e), as it finds that such transaction is in the best interests of the community, and that and Respondent has otherwise failed to engage in good faith in the sale process and in issues involving Wilbur Properties.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

SHORT TITLE: Gillespie (f/k/a Goldman) v. Goldman	CASE NUMBER: 17FAM01131

ATTACHMENT *(Number)*: 1

(This Attachment may be used with any Judicial Council form.)

If there are issues in effectuating Respondent's signing of any related documents regarding sale, the Court orders and authrorizes the Clerk of the Court to sign as an elisor on Respondent's behalf.

Regarding arbitration of personal property disputes, the Court will grant Petitioner's request pursuant to paragraph 7 of the prior stipulation and order. The Court orders arbitration through Lisa Murray, Esq., subject to her availability; it orders Respondent to make any payments for his half of fees by October 22, 2025; and it orders Respondent to cooperate with confirming a date with Ms. Murray by that time. The Court does not credit Respondent's claim that he is unable to afford the retainer, as the many emails parties have attached from him related to these RFOs suggest international travel, and Respondent has not otherwise provided an Income and Expense Declaration to substantiate his claim as required per CRC Rule 5.92(g)(3). If Respondent fails to comply with this order, Petitioner is permitted to advance his half of the fees to Ms. Murray, subject to reimbursement upon final sale of parties' real property.

Regarding Petitioner's request for statutory interest on the $300,000 offset provided as part of the prior stipulation and order, the Court denies this. The stipulation and order does not set clear deadlines, and so the Court does not find that it is "unsatisfied" within the meaning of CCP § 685.010(a).

Regarding Respondent's request to remove Wilbur Properties as the property manager or listing agent, the Court denies this. Respondent has not demonstrated any clear violations of their existing agreements or existing law, and his claims that Wilbur Properties have mismanaged the management or sale are not substantiated by any of the evidence he has presented.

Regarding Respondent's other claims against Wilbur Properties, the Court denies these without prejudice. These include Respondent's claims related to a $6,583.61 tax overpayment in October 2023, a $8,170 refund in February 2024, a $8,750 payment to Wachter in March 2024, and a tax bill that he allegedly submitted to Wilbur in January 2024. Respondent's claims have not been clearly described or documented as part of the current filings. Further, as demonstrated in Petitioner's opposition, these claims may be subject to mandatory arbitration.

Based on the above, the Court finds that Petitioner is the prevailing party on both of these RFOs, within the meaning of paragraph 6 of the stipulation entered June 21, 2024. Accordingly, the Court will award Petitioner's request for fees of $6,500 related to her RFO, and fees of $6,073.50 related to Respondent's RFO. The amount is to be deducted from Respondent's share of the sale proceeds. Respondent is further ordered not to sleep or reside in the subject property.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

Form Approved for Optional Use
Judicial Council of California
MC-025 [Rev. July 1, 2009]

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